

- RAG Learning

2.14 Comparative — Civil Rights

Politics — AQA (7152) — Paper 2 (Government and Politics of the USA and Comparative Politics)

On paper US rights protection looks decisively stronger: rights are entrenched in a constitution beyond legislative reach and enforceable by courts that can strike down offending legislation. The analytical interest lies in why that apparent advantage is **less decisive in practice than it first appears** — and why the two systems have simply relocated the vulnerability rather than removing it.

1. Side by side

	UK	USA
Source of rights	Ordinary statute — Human Rights Act 1998, Equality Act 2010; plus common law	Entrenched constitution — Bill of Rights, 14th Amendment
Repeal	Possible by simple Commons majority	Impossible by legislation; requires constitutional amendment
Judicial remedy	Declaration of incompatibility — the statute remains valid	Strike-down — the statute becomes void
Uniformity	Equality law and the HRA are reserved , applying UK-wide	Rights vary substantially by state — elections, policing, abortion since <i>Dobbs</i>
External supervision	European Court of Human Rights — independent of Brexit	None comparable

Main engine of change	Legislation	Judicial interpretation
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2. Structural analysis

Why US courts have driven rights change

- **A higher law to enforce** — the Fourteenth Amendment's equal protection clause provides a standard against which any federal or state law can be measured.
- **Bypassing hostile majorities** — a constitutional claim needs only a plaintiff with standing and a strong argument, not electoral or legislative majorities. This was decisive in the civil rights era, when southern Democrats' power in Congress made federal legislation impossible for decades. *Brown* (1954) delivered nationwide change no legislature of the period would have.
- **Durability** — because amendment is near-impossible, a constitutional ruling is effectively final.

Why UK advances came through legislation

With no entrenched rights and no power to invalidate statute, UK courts cannot deliver comparable change. Advances have therefore come through Acts of Parliament — the Race Relations Acts, the Sex Discrimination Act, the Equality Act 2010 — because that is the only route that can actually change the law.

Exam Tip: Each country's rights movements adopted **the strategy their institutions made viable**. This is the structural and rational approaches working together, and it is a far better explanation than any claim about differing national commitment to rights.

3. The paradox: legal security vs practical stability

	UK	USA
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Legal security	Weak — repealable by simple majority	Strong — beyond legislative reach
Practical stability	Strong — no government has actually repealed the HRA or Equality Act, despite repeated proposals	Weaker than it looks — <i>Dobbs</i> removed a right recognised for fifty years, with no change to the constitutional text
Where the vulnerability sits	With electoral majorities — which have proved reluctant to act	With judicial appointments — which have proved willing

Exam Tip: This is the central evaluative insight of the topic. **Entrenchment does not eliminate vulnerability; it relocates it.** US rights cannot be repealed by legislation, but their *content* is determined by interpretation — so they depend on nine appointments and on Senate control. The UK's rights are theoretically fragile and practically stable; the USA's are the reverse.

Two further UK stabilisers are worth naming: the UK remains bound by the **ECHR independently of the HRA**, so repeal would not remove the underlying obligations; and Convention rights are written into the **devolution settlements**, complicating repeal further.

4. Federalism vs devolution

- **USA:** the Tenth Amendment reserves elections, policing, education and (since *Dobbs*) abortion regulation to the states. A citizen's practical entitlements therefore depend substantially on *where they live* — which sits uncomfortably with the idea of national citizenship.
- **UK:** devolution transferred health, education and (in some nations) policing, but **equality law and the HRA are reserved**, maintaining a common floor across all four nations.

The counter-argument worth crediting: federalism permits advance as well as retreat. Several US states recognised same-sex marriage before *Obergefell*, and states have legislated protections exceeding the federal floor. Federalism produces both the strongest and the weakest rights regimes in the same country.

5. Cultural analysis

- **American rights discourse.** Political argument is framed as individual rights asserted against government, which is why contested moral questions become constitutional claims. It also makes compromise harder: *a right is asserted absolutely, whereas a policy can be traded* — which helps explain why US rights politics is so much more intractable.
- **British residual liberties.** The tradition of freedom to do whatever is not prohibited, with remedy through Parliament, encourages incremental legislative settlement rather than absolute claims.
- **Why US rights stay contested.** Because the Court can reverse itself, no ruling is final — giving opponents of any decision a permanent incentive to fight over appointments rather than accept the outcome.

6. Rational analysis

- **Groups litigate in the USA** because a single ruling delivers permanent nationwide change; they lobby ministers in the UK because the executive controls the legislative agenda.
- **Presidents appoint young justices** and senators abandon confirmation norms because the payoff is decades of control over rights.
- **UK governments resist entrenching rights** because entrenchment would bind their own freedom of action and transfer power to judges — which explains why every proposal for a British Bill of Rights has stalled.

7. Similarities

- Both advanced rights through a **combination** of litigation, legislation and social movement campaigning — no single route sufficed in either.
- In both, the **judiciary became a significantly more important rights actor** from the late twentieth century.
- Both have **comprehensive anti-discrimination statutes** (Equality Act 2010; Civil Rights Act 1964).

- In both, rights have been **restricted by counter-terrorism legislation** permitting extended detention and expanded surveillance.
- In both, governments have responded to adverse rulings by **proposing to curb judicial power**.
- In both, pressure groups pursue rights goals through the courts.

8. Which system protects rights better?

USA stronger	UK stronger
Entrenchment places rights beyond ordinary legislative reach	Rights are uniform across the whole state, not varying by region
Judicially enforceable against both federal and state government	Continuing ECHR obligations provide an external backstop
Courts can deliver change elected branches will not — <i>Brown, Obergefell</i>	Legislated rights carry democratic legitimacy and reach private discrimination
Rights protected from majorities that would remove them	Rights do not depend on the composition of a court; practical record of stability

Exam Tip: For a 25-mark answer, do not simply declare a winner. The strongest line is: **the USA protects rights better against legislatures; the UK protects them better against courts** — and which matters more depends on which institution is currently more hostile to the right in question. *Dobbs* and *Shelby County* show that the US answer has changed within a decade.

Key terms

Term	Definition
Entrenchment	Protection from amendment by ordinary legislation

Declaration of incompatibility	UK court finding that a statute conflicts with Convention rights; the statute remains valid
Equal protection clause	Fourteenth Amendment guarantee, the basis of most US rights litigation
Reserved matter	A power retained by Westminster — including equality law
Pre-clearance	VRA requirement for federal approval of voting changes; disabled by <i>Shelby County</i>
Substantive due process	US doctrine protecting certain rights regardless of procedure — basis of <i>Roe</i> and <i>Obergefell</i>
Residual rights	UK tradition of freedom to do whatever is not prohibited

Essential examples

- **Brown (1954)** — a court delivering what no legislature of the period would.
- **Equality Act 2010** — UK advance through legislation, reaching private discrimination.
- **Dobbs (2022)** — entrenched rights withdrawn by reinterpretation.
- **Shelby County (2013)** — legislation weakened without repeal.
- **Belmarsh (2004)** — UK declaration of incompatibility; government amended the law in response.
- **UK proposals for a British Bill of Rights** — repeatedly floated, never enacted; theoretical fragility, practical stability.
- **Counter-terrorism legislation in both countries** — rights restricted for collective security.